

MEMORANDUM

Subj: BRAND NAME JUSTIFICATION TO ACQUIRE BOOSTER PUMPS AND REPAIR PARTS

1. Identification of the agency and the contracting activity, and specific identification of the document as a “Limited Source Justification.”

This is a brand name justification. Contracting activity is the Naval Sea Systems Command, Naval Surface Warfare Center, Panama City Division (NSWC PCD), 110 Vernon Avenue, Panama City, FL 32407-7001 (Contracts Division Code 02).

2. Nature and/or description of the action being approved.

This action will award a purchase order, on a brand name specific basis, to acquire Hydraulics International booster pumps and repair parts. Competition will be limited to authorized distributors and resellers of Hydraulic International brand parts.

3. A description of the supplies or services required to meet the agency’s needs

The following items are being acquired:

Items	Part Number	Qty
Gas Booster Pump (5G-DS-30-Navy)	80204-200	30
Kit, Spool & Sleeve Assembly, Gas Booster	80792-100	11 Kits
Kit, Seal, SK1002	81003-100	11
Shipping	N/A	1 Lot

The Government’s minimum needs have been verified by the certifying technical and requirements personnel. This memo does not authorize acquisition for other requirements. This acquisition will be conducted using simplified acquisition procedures with a total dollar value above micro-purchase levels, but not exceeding the simplified acquisition threshold of \$350,000.00.

4. Identification of the justification rationale and, if applicable, a demonstration of the proposed contractor’s unique qualifications to provide the required supply or service. 10 U.S.C. 2304(c)(1), 10 U.S.C. 2304(d)(1)(B). Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements FAR 6.302-1(a)(2)(iii)(C).

The Air Booster Pump Assembly (ABPA) is used for Self-Contained Breathing Apparatus (SCBA) charging of cylinders with Grade D air. The booster pump used in this system is manufactured by Hydraulics International and when rebuilding these pumps, only OEM parts should be used. The rebuild kit is specific to the pump used in our design and the lock washers are a specific size and type for this pump. Use of alternate equipment may introduce new or changing existing parameters that introduce unacceptable risk may be harmful to the proper operation of the equipment. Therefore, Hydraulics International is the only brand that will meet the requirements for this effort. Hydraulics International is the OEM and these parts are specific to the pump used in the ABPA. As such, the Government does not expect significant savings through competition and does expect significant and unacceptable delays that will negatively impact this requirement. Therefore, it is in the Governments’ best interest to acquire the Hydraulics International brand.

5. A determination by the ordering activity contracting officer that the order represents the best value consistent with FAR 13.106-1(b).

The Contracting Officer has determined that the order represents the best value and results in the lowest overall cost

alternative (considering price, special features, administrative costs, etc.) to meet the Government's needs.

6. A description of the market research conducted among schedule holders and the results or a statement of the reason market research was not conducted.

For the reasons specified in paragraph 4 above, Hydraulics International is the only brand of equipment that will meet Government requirements. Additionally, since this requirement exceeds \$25,000, this requirement will be published in the Government point of entry SAM.gov.

7. Any other facts supporting the justification.

None

8. A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the restricted consideration before any subsequent acquisition for the supplies or services is made.

As stated in paragraph 4 above, the Hydraulics International brand, is the only brand that can meet this requirement.